

4. This Act may be cited as the Salmon and Freshwater Fisheries Act, 1935, and the Salmon and Freshwater Fisheries Act, 1923, the Salmon and Freshwater Fisheries (Amendment) Act, 1929, and this Act may be cited together as the Salmon and Freshwater Fisheries Acts, 1923 to 1935.

Short title and citation.
19 & 20
Geo. 5. c.39.

CHAPTER 44.

An Act to amend the enactments relating to National Health Insurance; to amend the enactments relating to Widows', Orphans' and Old Age Contributory Pensions, with respect to the allowances or pensions payable in respect of children under full-time instruction, to the date on which pensions cease to be payable, to reciprocal arrangements with other parts of His Majesty's dominions, to the incidence of the increase of contributions during the decennial period commencing the first day of January, nineteen hundred and thirty-six, and subsequent decennial periods, and to the payment of pensions in respect of the insurance of persons ceasing to be insured within twelve months before death or before attaining the age of sixty-five; and for purposes connected therewith.

[2nd August 1935.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Amendment of National Health Insurance Act, 1924.

1.—(1) For subsections (1), (1A), (2), (3), (4), (5), (5A) and (6) of section three of the National Health Insurance Act, 1924, hereinafter called “the Insurance Act with

Amendment of s. 3 of Insurance Act with

respect to
free insur-
ance period
and ex-
tended
insurance
period.
14 & 15
Geo. 5. c. 38.

Act," the following subsections shall be substituted, that is to say :—

"(1) Subject as hereinafter provided, where an insured person, being a member of an approved society, ceases to be employed within the meaning of this Act or to pay contributions as a voluntary contributor, as the case may be, he shall, during a period ending on the thirtieth day of June, or the thirty-first day of December, whichever next precedes the expiration of two years from the end of the contribution week in which he ceased to be so employed or in respect of which the last contribution paid by him as a voluntary contributor was paid (which period is hereinafter called a "free insurance period") be treated for all purposes as if he were an employed contributor or a voluntary contributor, as the case may be, insured under this Act :

Provided that, if it is proved to the satisfaction of his approved society or in the case of a dispute it is decided in manner provided by this Act that when he ceased to be so employed or at the end of the contribution week in respect of which the last contribution paid by him as a voluntary contributor was paid he was incapable of work by reason of some specific disease or bodily or mental disablement of which notice is given within the prescribed time, the said two years shall be reckoned from the end of the contribution week in which he ceased to be so incapable of work.

(2) Notwithstanding anything in the preceding subsection but subject to the provisions of subsection (5) of this section, a person who becomes employed within the meaning of this Act during a free insurance period shall not, on ceasing to be so employed, become entitled by reason thereof to a new free insurance period, unless since the beginning of the contribution half-year following that in which the first-mentioned period began he has been employed within the meaning of this Act during at least eight contribution weeks, whether continuous or not, in a period comprising two consecutive contribution half-years.

(3) Where immediately before the beginning of a free insurance period an insured person is an employed contributor and has been continuously insured for at least ten years, then, if within the prescribed time after the expiration of the free insurance period it is proved to the satisfaction of his approved society, or in the case of a dispute it is decided in manner provided by this Act, that throughout the period, except when he was employed within the meaning of this Act, he was either incapable of work by reason of some specific disease or bodily or mental disablement of which notice was given within the prescribed time, or was available for but unable to obtain employment within the meaning of this Act, he shall from the expiration of the free insurance period, continue to be treated as insured for a further period of a year (hereinafter called an "extended insurance period") and thereafter, if within the prescribed time after the expiration of each extended insurance period the like proof or decision is given with respect to that period, he shall continue to be treated as insured for a further extended insurance period :

Provided that, in respect of not more than twelve weeks of a free insurance period or in respect of not more than seven weeks of an extended insurance period in respect of which proof as aforesaid would otherwise be required for the purposes of this subsection, such proof shall not be necessary.

(4) A person shall not be entitled to sickness or disablement benefit during an extended insurance period, unless and until, since the end of his free insurance period, he has been employed within the meaning of this Act during at least twenty-six contribution weeks, whether continuous or not, in a period comprising not more than four consecutive contribution half-years, and twenty-six contributions have been paid by or in respect of him :

Provided that this subsection shall not apply to a person who is employed within the meaning of this Act at the beginning of an extended

insurance period and would, if he had ceased to be so employed immediately before that date, have then been entitled to a new free insurance period.

(5) Notwithstanding anything in subsection (2) of this section—

- (a) a person who has been continuously employed within the meaning of this Act since before the beginning of an extended insurance period shall, on ceasing to be so employed, become entitled to a new free insurance period if he would have become so entitled had he ceased to be so employed immediately before the beginning of that extended insurance period;
- (b) in any other case a person who is so employed during an extended insurance period shall not, on ceasing to be so employed, become entitled by reason thereof to a new free insurance period unless and until the provisions of the last preceding subsection disentitling him to sickness and disablement benefit have ceased to be applicable to him.

(6) A person who during an extended insurance period becomes a voluntary contributor shall for the purpose of determining his title to sickness and disablement benefit be treated as if he had not been previously insured, but if he was employed within the meaning of this Act immediately before the first week in respect of which a contribution was paid by him as a voluntary contributor he shall, for the purpose of determining his title to those benefits, be treated as though he had become a voluntary contributor on the date when that employment began :

Provided that this subsection shall not apply to a person who becomes a voluntary contributor immediately on ceasing to be so employed if he would have been entitled to a new free insurance period had he not become a voluntary contributor.

(7) If it is proved to the satisfaction of his approved society or in the case of a dispute it is

decided in manner provided by this Act that at the expiration of a free insurance or extended insurance period a person was incapable of work by reason of some specific disease or bodily or mental disablement of which notice within the prescribed time is or has been given, the free insurance or extended insurance period, as the case may be, shall continue until the thirtieth day of June, or the thirty-first day of December, whichever next follows the day on which he ceased to be so incapable of work, and this section shall apply accordingly, but nothing in this subsection shall be construed as depriving a person of any rights to which he would have been entitled but for the provisions thereof."

(2) Where an insured person on the expiration of a free insurance period enters upon an extended insurance period, and becomes disentitled to sickness and disablement benefit, his transfer value shall be carried to the Reserve Suspense Fund, and if during an extended insurance period he ceases to be so disentitled, or becomes a voluntary contributor, a reserve value shall be credited in respect of him to the society of which he is a member.

(3) In subsection (2) of section sixty-eight of the Insurance Act, for the words "and as to the residue thereof shall be applied in such manner as may be prescribed" there shall be substituted the words "and as to the residue thereof shall be applied in the repayment to approved societies of so much of the sums expended by them in paying maternity benefit in respect of the insurance of persons for the time being disentitled under subsection (4) of section three of this Act to sickness and disablement benefit as is not defrayed, in pursuance of section four of this Act, out of moneys provided by Parliament, and, so far as not so applied, shall be applied in such manner as may be prescribed."

"In this subsection the expression 'maternity benefit' does not include any increase of maternity benefit by way of additional benefit."

(4) The subsections of section three of the Insurance Act numbered (6A), (6B), (7), (8) and (9) shall be numbered (8), (9), (10), (11) and (12) respectively.

(5) This section shall come into force on the first day of January, nineteen hundred and thirty-six.

Amendment
of s. 13 of
Insurance
Act as to
evidence of
disease or
disablement.

2.—(1) The following subsection shall be inserted after subsection (4) of section thirteen of the Insurance Act (which relates to sickness and disablement benefit), that is to say :—

“(4A) Notwithstanding anything in the preceding subsection, an insured person shall not be entitled to sickness or disablement benefit in respect of any week unless satisfactory evidence of his incapacity during that week is submitted within three months of the end of the week to his approved society or to the committee administering the benefit :

Provided that in calculating the said period of three months no account shall be taken of any period during which the society or committee are satisfied, or in the case of a dispute it is decided in manner provided by this Act, that in the circumstances of the case the insured person had a reasonable excuse for not submitting evidence.

For the purposes of this subsection, evidence submitted by post shall be deemed to have been submitted on the day on which the letter containing the evidence was posted.”

(2) The provisions of the said subsection (4A) shall apply in relation to benefit in respect of any week before the commencement of this Act, but with the substitution for the reference to the end of the week of a reference to the commencement of this Act.

Amendment
of s. 17 of
Insurance
Act as to
inmate of
institutions.

3.—(1) In paragraph (b) of subsection (2) of section seventeen of the Insurance Act (which relates to payments in respect of inmates of institutions) the words “ unless that institution is a workhouse, poor law infirmary, asylum or other similar institution, maintained out of public funds ” shall be omitted.

(2) The following proviso shall be inserted after proviso (ii) to subsection (2) of the said section seventeen, that is to say :—

“(iii) Where on the thirty-first day of December in any year an insured person is an inmate of an institution, any sum which but for the

Insurance and Contributory Pensions Act, 1935.

provisions of this section would have been payable to him shall, in so far as it exceeds fifty pounds, or in the case of a person who was an inmate of an institution on the seventh day of January, nineteen hundred and twenty-nine, such sum as may be prescribed, be paid to the Central Fund."

(3) Subsection (4) of the said section seventeen shall have effect as though the following words were added at the end thereof, that is to say :—

"and where under this section any payment is made to the Central Fund so much thereof as is derived from moneys provided by Parliament shall be repaid to the Exchequer."

(4) Any moneys payable as aforesaid to the Central Fund shall be paid in accordance with regulations made under the Insurance Act.

4. Notwithstanding anything in section fifty-four of the Insurance Act (which relates to deposit contributors), provision may be made by regulations under that Act for the purpose of enabling deposit contributors who, on attaining the age of sixty-five years, fulfil the prescribed conditions to become entitled to medical benefit for the remainder of their lives, and such regulations may provide for the transfer of such deposit contributors to the Deposit Contributors Insurance Section.

Amendment of s. 54 of Insurance Act as to medical benefit for deposit contributors.

5.—(1) The provisions of subsection (3) of section sixty-one, and of subsection (2) of section one hundred and eight, of the Insurance Act (which relate to the application of the Act to men belonging to the reserve forces) shall, subject to such adaptations, modifications or conditions as may be prescribed, apply to officers of the reserve forces as they apply to the men therein mentioned.

Application of ss. 61 and 108 of Insurance Act to officers of reserve forces.

(2) In this section "officer of the reserve forces" means an officer on the retired or emergency lists of the Royal Navy or the Royal Marines, a retired officer of the Regular Army, an officer on the retired list of the Royal Air Force, or an officer of the naval reserves, the regular army reserve of officers, the supplementary reserve of officers, the air force reserve, the air force special reserve, the territorial army, the territorial army reserve of officers, the auxiliary air force, or the auxiliary air force reserve,

or an officer holding a temporary commission in the naval, marine, land or air forces, or an officer holding a temporary warrant in the Royal Navy, the Royal Marines, or the naval reserves.

Amendment
of s. 89 of
Insurance
Act as to
determina-
tion of
questions.

6. The following subsections shall be inserted after subsection (1) of section eighty-nine of the Insurance Act (which relates to the determination of questions), that is to say :—

“(1A) Any person appointed in accordance with any regulations made under this section for the purpose of holding an inquiry and reporting to the Minister, may by summons require any person to attend, at such time and place as is set forth in the summons, to give evidence or to produce any documents in his custody or under his control which relate to the question to be determined, and may take evidence on oath, and for that purpose administer oaths:

Provided that no person shall be required, in obedience to such a summons, to go more than ten miles from his place of residence, unless the necessary expenses of his attendance are paid or tendered to him.

“(1B) Every person who refuses or wilfully neglects to attend in obedience to a summons issued under this section, or to give evidence, or who refuses to produce any book or document which he may be required to produce for the purposes of this section, shall be liable on summary conviction to a fine not exceeding five pounds.”

Special
provisions
with respect
to persons
declared by
High Court
not to be
employed
within the
meaning of
Insurance
Act.

7.—(1) Where under section eighty-nine of the Insurance Act the High Court decide that any employment or any class of employment is not or was not employment within the meaning of the Act or that a person is not or was not a person employed within the meaning of the Act, and that decision is inconsistent with some previous determination of the Minister under that section, then, if the Minister is satisfied that contributions have been paid by or in respect of any person by reason of that determination or in the reasonable belief that that determination was applicable, he may, if it appears to him that it would be in the interests of any person by or in respect of whom contributions have been so paid

so to do, direct that that person shall be treated as though he had been in insurable employment during any week in respect of which contributions were so paid before the date on which the decision of the High Court was given, and, if such a direction is given, that person shall be deemed to have been in such employment accordingly.

(2) The provisions of the preceding subsection shall apply with the necessary modifications in any case where the Minister, on new facts being brought to his notice, has revised a determination previously given by him under the said section eighty-nine as they apply where the High Court have given a decision inconsistent with a determination previously so given by the Minister.

8.—(1) Subsection (2) of section ninety-seven of the Insurance Act (which provides for the recovery of contributions where an employer has been convicted of the offence of failing or neglecting to pay any contributions), shall apply in a case where an employer has been charged with such an offence and an order has been made under subsection (1) of section one of the Probation of Offenders Act, 1907, in the same manner as it applies where an employer has been convicted of such an offence.

Amendment
of s. 97 of
Insurance
Act as to
summary
proceedings.

7 Edw. 7.
c. 17.

(2) In any case where—

- (a) an employer is convicted of any offence under section thirteen of the Stamp Duties Management Act, 1891, as applied by regulations made under subsection (2) of section eight of the Insurance Act, or of the offence under subsection (2) of section ninety-six of the Insurance Act of contravening or not complying with the requirements of the regulations made under the last-named Act or is charged with any such offence and an order is made under subsection (1) of section one of the Probation of Offenders Act, 1907; and
- (b) the evidence on which he is convicted or on which the order is made shows that the employer, for the purpose of paying any contribution which he was liable to pay, has affixed to an insurance card any stamp which had been previously affixed to any material or

54 & 55 Vict.
c. 38.

which had been cancelled or defaced in any way whatever, whether it had actually been used for the purpose of payment of a contribution or not,

the employer shall be liable to pay to the Minister a sum equal to the amount of the contribution in respect of which the stamp was affixed, and on such a conviction or on the making of such an order, if notice of intention to do so has been served with the summons or warrant, evidence may be given of the failure or neglect on the part of the employer to pay other contributions in respect of the same person during the two years preceding the date of the offence, and on proof of such failure or neglect the employer shall be liable to pay to the Minister a sum equal to the total of the contributions which he is so proved to have failed or neglected to pay.

The said sum when paid shall be treated as payment in satisfaction of the unpaid contributions, and the employed person's portion of those contributions shall not be recoverable by the employer from the employed person.

(3) The following provisions shall have effect with respect to sums ordered to be paid to the Minister under the preceding subsection—

- (a) any sum so ordered to be paid by a court in England shall be recoverable as a penalty and not otherwise;
- (b) if the employer, being a company, fails to pay to the Minister any sum which the company has been ordered to pay under the preceding subsection, that sum or such part thereof as remains unpaid shall be a debt due to the Minister jointly and severally from any directors of the company who knew, or could reasonably have been expected to know, of the failure or neglect to pay the contribution or contributions in question, and proceedings for the recovery of the said sum summarily as a civil debt may be commenced at any time within twelve months from the date of the order for payment made on the company.

(4) Where an employer has been convicted under the Insurance Act of the offence of failing or neglecting to pay any contribution in respect of any person or has been charged thereunder with such an offence

and an order has been made under subsection (1) of section one of the Probation of Offenders Act, 1907, then, if notice of the intention so to do is served with the summons or warrant, evidence may be given of failure or neglect on the part of that employer to pay contributions in respect of other persons employed by him, and accordingly subsection (2) of section ninety-seven of the Insurance Act shall have effect as though after the words "in respect of that person" there were inserted the words "or any other person employed by him."

9.—(1) Paragraph (e) of Part I of the First Schedule to the Insurance Act shall have effect as though the words "from the owner thereof" were omitted, and as though for the word "owner" in the second place where it occurs there were substituted the words "person from whom the use of the vehicle or vessel is so obtained."

Amendment
of First
Schedule to
Insurance
Act.

(2) Paragraph (k) of Part II of the said Schedule shall have effect as though at the end of that paragraph the following words were added, that is to say:—

"or, in cases where the remuneration is in whole or in part a varying amount and the rate of remuneration is accordingly not immediately ascertainable, at a rate of remuneration which, as estimated by the Minister by reference to the remuneration earned by the employee in the same employment during the last preceding year, or earned during that year by persons in the same grade in the same employment for the same employer, or in similar employments for other employers, or, if information with regard to those matters is not available, then to any other circumstances which appear to the Minister to be relevant, exceeds in value two hundred and fifty pounds a year."

(3) The following paragraph shall be inserted after paragraph (n) of Part II of the said Schedule, that is to say:—

"(nn) Employment in the United Kingdom as master or a member of the crew of any British ship registered outside the United Kingdom, not being a ship engaged in regular trade with ports outside the British Isles."

Certain
employed
persons
not to be
deemed
insured
persons.

10.—(1) A person shall, notwithstanding anything in section one of the Insurance Act, not be deemed to be an insured person within the meaning of the Act by reason only that he is employed for the purposes of any business of which, within a period of two years immediately before the date when the employment began, he was the owner or part owner, if he is so employed—

(a) by a relative; or

(b) by a company where the majority of the voting power or shares is in the hands of the employed person or his relatives or of the nominees of the employed person or his relatives.

(2) In this section “relative” means the husband or wife, son or daughter, or son-in-law or daughter-in-law of the employed person, or any of them, and “nominee” means a person who may be required to exercise his voting power on the directions of, or holds shares directly or indirectly on behalf of, the employed person or any of his relatives.

Arrears of
contribu-
tions due to
unemploy-
ment and
Unemploy-
ment
Arrears
Fund.

11.—(1) The following subsection shall be substituted for subsection (4) of section fifteen of the Insurance Act, that is to say:—

“(4) Regulations under this section shall provide that, subject to such conditions as may be prescribed, arrears of contributions accruing while a person was insured as an employed contributor during any period in respect of which he proves that he was available for but unable to obtain employment within the meaning of this Act shall be left out of account.”

(2) Out of every weekly contribution paid by or in respect of an insured person who is a member of an approved society there shall be retained by the Minister such sum as may with the consent of the Treasury be prescribed in the case of men and women respectively, and the sums so retained shall be carried to a fund under the control of the Joint Committee to be called “the Unemployment Arrears Fund.”

(3) There shall be paid as soon as may be after the end of each contribution year into the Unemployment Arrears Fund out of moneys provided by Parliament a

sum equal to the total sum retained by the Minister and paid into the Fund in respect of that year under the last preceding subsection :

Provided that if as a result of any valuation of the Navy, Army and Air Force Insurance Fund, made after the first day of January, nineteen hundred and thirty-two, for the purposes of section fifty-nine of the Insurance Act, the Government Actuary certifies that there is a disposable surplus in the Fund after providing for the cost of maintaining the prescribed additional benefits, that surplus with any interest accrued thereon shall be paid into the Unemployment Arrears Fund in such amounts and at such times as the Treasury may direct, and the sums payable into the Fund out of moneys provided by Parliament shall be correspondingly reduced.

(4) There shall be credited to every approved society out of the Unemployment Arrears Fund a sum calculated at the rate of threepence halfpenny in respect of each of the total number of arrears of contributions of members of the society which are left out of account in accordance with any regulations made by virtue of subsection (4) of section fifteen of the Insurance Act :

Provided that no sums shall be credited in respect of the arrears of contributions of any member of a society which accrued while he was treated as insured by virtue of the provisions of subsection (5A) of section three of the Insurance Act and that in the case of arrears of contributions of masters and seamen serving on foreign-going ships such sum shall be credited to the approved society of which the master or seaman is a member as may with the consent of the Treasury be prescribed.

(5) All sums credited to societies out of the Unemployment Arrears Fund under this section shall, for the purposes of section four of the Insurance Act, be deemed to have been derived from contributions made in respect of contributors notwithstanding that they are derived in part from moneys provided by Parliament.

(6) The Government Actuary shall, for the purposes of the certificate mentioned in subsection (1) of section three of the National Health Insurance Act, 1926, and subsection (1) of section seven of the National Health Insurance and Contributory Pensions Act, 1932, (which relate to deficiencies disclosed on the valuation of an approved society or branch so far as they are attributable

16 & 17

Geo. 5. c. 9.

22 & 23

Geo. 5. c. 52.

to loss of contributions due to unemployment), take into account the effect upon the finances of the society or branch of the payments made by virtue of this section to or from the Unemployment Arrears Fund in respect of members of the society or branch and accordingly in subsection (1) of the said section seven for the words from "the provision made in the valuation basis," to "the said section fifteen," there shall be substituted the words "the financial position of the society or branch " has been made worse owing to the amount of " unemployment in the period exceeding that for which " provision is made in the valuation basis (regard being " had to the operation of section fifteen of the principal " Act and the regulations made thereunder and of " the provisions relating to the Unemployment Arrears " Fund)."

(7) The provisions of this section shall have effect with respect to the contribution year beginning on the second day of July, nineteen hundred and thirty-four, and with respect to succeeding contribution years.

Special provisions as to voluntary contributors.

12. If any person, while insured as a voluntary contributor, becomes insured as an employed contributor for any period, he may, if he ceases to be employed within the meaning of the Insurance Act and gives notice within the prescribed time and in the prescribed manner, again become a voluntary contributor.

Accounts to be audited by Comptroller and Auditor General, &c.

13.—(1) The accounts of the National Health Insurance Fund, and of the Central Fund, the Unemployment Arrears Fund, and any other fund under the control of the Joint Committee, shall be prepared in such form, in such manner and at such times as the Treasury may direct, and the Comptroller and Auditor General shall examine and certify every such account and shall lay copies thereof, together with his report thereon, before both Houses of Parliament.

(2) Subsection (3) of section sixty-five of the Insurance Act is hereby repealed.

Transitional regulations.

14.—(1) The provisions of this section shall have effect in relation to the transition from the provisions of the Insurance Act as in force before the commencement of this Act to the provisions of that Act as amended by this Act.

(2) Regulations may be made under the Insurance Act in relation to any of the following persons, that is to say—

- (a) persons who are treated as insured on the thirty-first day of December, nineteen hundred and thirty-five, by virtue of any of the provisions of section three of the Insurance Act;
- (b) persons who are voluntary contributors on that date but became voluntary contributors after the end of the year nineteen hundred and thirty-two :

providing that, subject to the prescribed conditions, any of the provisions of the Insurance Act or this Act shall apply to them with any prescribed modifications and adaptations.

15.—(1) The amendments specified in the second column of the First Schedule to this Act (which relates to minor or consequential amendments) shall be made in the sections of the Insurance Act specified in the first column of that Schedule. Minor amendments of Insurance Act.

(2) Any reference in the Insurance Act to the Arbitration Act, 1889, shall be construed as a reference to the Arbitration Acts, 1889 to 1934, as amended by any subsequent enactment. 52 & 53 Vict. c. 49.

Amendment of Widows', Orphans' and Old Age Contributory Pensions Acts, 1925 and 1929.

16.—(1) Subsection (1) of section one of the Widows', Orphans' and Old Age Contributory Pensions Act, 1925, hereinafter called " the Pensions Act " (which relates, among other matters, to the additional allowance or orphan's pension payable in respect of children under a specified age) shall have effect as though in paragraphs (a) and (b) thereof for the words " while under the age hereinafter specified " there were substituted the words " while under the age of fourteen and for the further period hereinafter specified ". Amendment of Pensions Act as to children under full time instruction. 15 & 16 Geo. 5. c. 70.

(2) For subsection (2) of the said section, there shall be substituted the following subsection, that is to say :—

“(2) The specified further period shall be any period between the day before the date on which the child attains the age of fourteen and the end of

July next following the date on which he attains the age of sixteen during which he is or is deemed, in accordance with regulations made under this Act, to be under full time instruction in a day school."

(3) The following shall be substituted for paragraph (d) of section eighteen, and for proviso (b) to subsection (1) of section nineteen, of the Pensions Act:—

"a widow's pension shall cease to be payable on the date on which the youngest child, or the only child, as the case may be, attains the age of sixteen:

Provided that—

- (a) where on the date when the child attains the age of sixteen or at any time thereafter up to the thirty-first day of July next following that date the child is or is deemed, in accordance with regulations made under this Act, to be under full time instruction in a day school, the pension shall be payable in respect of any period up to the thirty-first day of July next following the date on which the child attains the age of sixteen during which he is or is deemed to be under such instruction; and
- (b) if the child dies before attaining the age of sixteen, the pension shall be payable until the date on which the child would have attained the age of sixteen, or until the expiration of six months from the date of the child's death, whichever period is the shorter, without prejudice, however, in a case where the deceased child was not the only child, to any further continuance of the pension to which the widow may be entitled in right of any older surviving child."

(4) The provisions of the preceding subsection shall be deemed to have had effect as from the commencement of the Pensions Act, and where by virtue of the provisions contained in the said paragraph (d) or the said proviso (b) as originally enacted, or as amended by section ten of the Widows', Orphans' and Old Age Contributory Pensions Act, 1929, a widow's pension has

ceased before the commencement of this Act, the widow shall not be entitled to any payment on account of the pension in respect of the period between the date on which the pension so ceased and the commencement of this Act.

17. Subsection (4) of section twenty-eight of the Pensions Act (which relates to the date on which pensions cease to be payable) shall have effect as though the following proviso were added thereto :—

Amendment
of s. 28
of Pensions
Act as to
date on
which
pensions
cease to be
payable.

“ Provided that, where a pension would cease to be payable by reason only of the person entitled thereto attaining the age of seventy, the pension shall continue to be payable in respect of any days intervening between the day prior to the day on which that person attains the age of seventy and the day in the week on which pensions under the Old Age Pensions Acts, 1908 to 1924, are payable.”

18. Subsection (1) of section thirty-three of the Pensions Act (which provides for the making of reciprocal arrangements with other parts of His Majesty's dominions) shall have effect as though the following proviso were added thereto, that is to say :—

Amendment
of s. 33 of
Pensions
Act as to
reciprocal
arrange-
ments
with other
parts of His
Majesty's
dominions.

“ Provided that, where reciprocal arrangements have been made with any part of His Majesty's dominions outside Great Britain for the purposes of the Insurance Act, but have not been made for the purposes of this Act, any insurance which by virtue of those reciprocal arrangements is deemed to be insurance for the purposes of the former Act shall not be deemed to be insurance for the purposes of this Act, and the expressions “insured” and “insurance” in this Act shall be construed accordingly.”

19.—(1) Subsection (2) of section forty-three of the Pensions Act (which provides for an increase in the rates of contributions during the decennial period commencing the first day of January, nineteen hundred and thirty-six, and subsequent decennial periods) shall have effect as though for the words “(of which in the case of “employed persons one halfpenny shall be payable by “the employer and one halfpenny by the employed “person)” there were substituted the words “(which

Amendment
of s. 43 of
Pensions
Act as to
increased
contribu-
tions.

shall be payable by the employed person)", and as if at the end of the subsection the following words were added, that is to say—"so, however, that in the case of women the additional increase to be made in the decennial period commencing the first day of January, nineteen hundred and forty-six, shall in the case of employed persons be payable by the employer, and the additional increase to be made in the decennial period commencing the first day of January, nineteen hundred and fifty-six, shall in the case of employed persons be payable by the employed person."

(2) Subsection (3) of the said section forty-three (which provides for an increase in the rates of contributions payable in respect of persons over the age of sixty-five) shall have effect as though for the words "shall at the beginning of each such decennial period be increased in the case of men by one penny and in the case of women by one halfpenny a week (the whole of which shall be payable by the employer)" there were substituted the words "shall in the case of men be increased by one penny a week at the beginning of each such decennial period and in the case of women by one penny a week at the beginning of the decennial period commencing the first day of January, nineteen hundred and forty-six (the whole of which shall in either case be payable by the employer)".

(3) The increase in the rates of contribution to be made in the decennial period commencing on the first day of January, nineteen hundred and thirty-six, and subsequent decennial periods, shall not have effect in respect of any part of a week before the first Monday in each decennial period.

Payment of pensions in certain cases in respect of the insurance of persons ceasing to be insured.

20.—(1) Where a person who immediately before the beginning of a free insurance period had been continuously insured as an employed contributor for a period of not less than two hundred and eight weeks and by or in respect of whom not less than one hundred and sixty contributions had been paid ceases to be insured at the end of that free insurance period, but it is proved to the satisfaction of the Minister, or in the case of an appeal it is decided in manner provided by the Pensions Act, that he was during that period, except when employed within the meaning of the Insurance Act or when incapable of

work by reason of some specific disease or bodily or mental disablement of which notice was given within the prescribed period, available for but unable to obtain employment, then, if within twelve months of ceasing to be insured he attains the age of sixty-five, an old age pension, and, if within that period he dies, a widow's pension and an orphan's pension, shall, whether he has or has not during the period again become insured, be payable in respect of his insurance in accordance with the provisions of the Pensions Act relating respectively to such pensions, if such a pension would have been so payable if he had attained the age of sixty-five or had died, as the case may be, on the last day of the free insurance period :

Provided that, in respect of not more than twelve weeks of the free insurance period in respect of which proof as aforesaid would otherwise be required for the purposes of this subsection, such proof shall not be necessary.

Where a person has become entitled to an old age pension by virtue of the provisions of this subsection, he shall, for the purposes of the Pensions Act, but not for any other purpose, be deemed to have been insured continuously from the end of the free insurance period aforesaid until his death.

(2) For the purposes of the preceding subsection, any person who was on the thirty-first day of December, nineteen hundred and thirty-five, treated as insured by virtue of the provisions of subsections (1), (3) or (5A) of section three of the Insurance Act shall be deemed to have entered upon a free insurance period on the date when he last began to be treated as insured by virtue of the provisions of subsection (1) of that section, and that period shall be deemed to be still subsisting on the said thirty-first day of December, but nothing in the foregoing provisions of this subsection shall be construed as giving to any person a right to a pension which would not have been payable, if this Act had not been passed.

(3) Section nine of the National Health Insurance and Contributory Pensions Act, 1932, is hereby repealed.

(4) This section shall come into force on the first day of January, nineteen hundred and thirty-six.

Minor
amend-
ments of
Pensions
Acts, 1925
and 1929.

21.—(1) The amendments specified in the second column of the Second Schedule to this Act (which relates to minor and consequential amendments) shall be made in the sections of the Acts specified in the first column of that Schedule.

(2) Any reference in the Pensions Act to the Arbitration Act, 1889, shall be construed as a reference to the Arbitration Acts, 1889 to 1934, as amended by any subsequent enactment.

General.

Application
to Scotland.

22. In the application of this Act to Scotland—

- (a) for the expression “summons or warrant” the expression “complaint” shall be substituted;
- (b) any provision with regard to the recovery of a sum or amount summarily as a civil debt shall have effect as if the word “summarily” were omitted therefrom;
- (c) the subsections directed by section six of this Act to be inserted in section eighty-nine of the Insurance Act shall have effect as if for the expression “summons” the expression “notice” were substituted.

Application
to Northern
Ireland.

23.—(1) This Act, so far as it relates to matters with respect to which the Parliament of Northern Ireland has power to make laws, shall not extend to Northern Ireland unless and until provision to that effect is made either—

- (a) by an Act of the Parliament of Northern Ireland;
- or
- (b) by an Order of the Governor of Northern Ireland in Council made in pursuance of such an Act,

and if and when such provision is made, this Act shall extend to Northern Ireland subject to such exceptions and adaptations as may be specified in such Act or Order as aforesaid.

(2) If provision appearing to His Majesty substantially to correspond to the provisions of this Act relating to contributions to the Unemployment Arrears Fund is made by the Parliament of Northern Ireland, His Majesty by Order in Council may direct that the provisions of this Act relating to the crediting to the approved societies out

of that fund of sums in respect of arrears of contribution due to unemployment shall, with or without adaptations and modifications, extend to Northern Ireland, but save as aforesaid the last mentioned provisions shall not extend to Northern Ireland.

(3) So much of any payments made under section seventeen of the Insurance Act to the Central Fund as are derived from moneys provided by the Parliament of Northern Ireland shall be repaid to the Exchequer of Northern Ireland.

(4) For the purposes of section six of the Govern-^{10 & 11}ment of Ireland Act, 1920, this Act shall be deemed to ^{Geo. 5. c. 67.}be an Act passed before the appointed day.

24.—(1) This Act may be cited as the National Health Insurance and Contributory Pensions Act, 1935, and shall be read as one with the National Health Insurance Acts, 1924 to 1932 and the Widows', Orphans' and Old Age Contributory Pensions Acts, 1925 to 1932, respectively, and this Act and those Acts may be respectively cited together as the National Health Insurance Acts, 1924 to 1935, and the Widows', Orphans' and Old Age Contributory Pensions Acts, 1925 to 1935. Short title and interpretation.

(2) References in this Act to the Insurance Act or to the Pensions Act shall, unless the context otherwise requires, be construed as references to those Acts as amended by any subsequent enactment, including this Act.

SCHEDULES.

FIRST SCHEDULE.

Section 15.

MINOR AND CONSEQUENTIAL AMENDMENTS OF NATIONAL HEALTH INSURANCE ACT, 1924.

Section 14 - - - In paragraph (a) of subsection (5) for the words "by reason of an insufficient
" number of contributions having been
" paid by or in respect of him or on

1ST SCH.
—cont.Section 14—*cont.*

“ account of arrears ” and in paragraph (b) of the said subsection (5) for the words “ by reason of an insufficient number of contributions having been paid by or in respect of him ” or of the insufficiency of the sum standing to his credit in the Deposit Contributors’ Fund ” there shall be substituted the words “ for any reason other than delay in making a claim ”.

Section 16 -

- - In paragraph (a) of subsection (1) “ payable ” shall be substituted for “ paid ” in the first and third places where that word occurs.

In subsection (2), “ payable ” shall be substituted for “ to be paid ”.

Section 20 -

- - The following paragraph shall be substituted for paragraph (d) of subsection (1), that is to say :—“ (d) in the case of a ship registered in one country the owner of which resides or has his principal place of business in the other, for determining in what cases contributions payable in respect of persons employed on the ship are to be payable under the enactments relating to national health insurance in force in one country, and in what cases they are to be payable under those enactments in force in the other ”.

Section 41 -

- - In subsection (3) after the word “ notification ” there shall be inserted the words “ in writing ”.

Section 56 -

- - In subsection (1) after the words “ being an insured person ” there shall be inserted the words “ under the age of sixty-five ”.

In the proviso to subsection (2) after the words “ but unable to obtain employment ” there shall be inserted the words “ or of any period after s’e attains the age of sixty-five ”.

- Section 62 - - - In the proviso to subsection (1) after the words "sickness benefit" there shall be inserted the words "or disablement benefit". 1st Sch. —cont.
- Section 65 - - - In subsection (2) after the words "National Health Insurance Fund" there shall be inserted the words "or to the Unemployment Arrears Fund".
- Section 70.- - - In subsection (2) for the words "the prescribed rate per annum" there shall be substituted the words "such rate or rates per annum as may be prescribed".
- Section 71 - - - In paragraph (a) of subsection (1) there shall be inserted at the end thereof the words "and the Unemployment Arrears Fund," and the following paragraph shall be inserted after the said paragraph (a), that is to say:—
 "(aa) provide for crediting to each society the sums due to the society out of the Unemployment Arrears Fund in respect of arrears of contributions of members of the society".
 In paragraph (c) of subsection (1) for the words "the prescribed rate per annum" there shall be substituted the words "such rate or rates per annum as may be prescribed".
- Section 71 - - - In paragraph (d) of subsection (1) after the words "in such manner" there shall be inserted the words "and at such times".
- Section 75 - - - In subsection (1A) for the word "extended" in both places where that word occurs there shall be substituted the word "varied".
- Section 89 - - - In paragraph (a) of subsection (1) for the words "is entitled to become a voluntary contributor" there shall be substituted the words "is or was entitled to be a voluntary contributor".

1ST SCH. Section 96 - - - In subsection (2) after the words "in
—cont. satisfaction of such contributions"
there shall be inserted the words "and
" the employed person's portion of
" those contributions shall not be
" recoverable by the employer from
" the employed person".

Section 112 - - Subsection (1) shall cease to have
effect.

First Schedule, Part II In paragraph (e) for the words " Educa-
" tion (Scotland) (Superannuation)
" Act, 1919 " there shall be substituted
the words " Education (Scotland)
" (Superannuation) Acts, 1919 to
" 1925 ".

Section 21

SECOND SCHEDULE.

MINOR AND CONSEQUENTIAL AMENDMENTS OF WIDOWS',
ORPHANS' AND OLD AGE CONTRIBUTORY PENSIONS
ACTS, 1925 AND 1929.

*Widows', Orphans' and Old Age Contributory Pensions
Act, 1925.*

Section 35 - - - In subsection (2) for the words " entitled
thereto " in both cases where those
words occur there shall be substi-
tuted the words " entitled to payment
thereof ".

*Widows', Orphans' and Old Age Contributory Pensions
Act, 1929.*

Section 26 - - - After " the principal Act " there shall be
inserted the words " or of subsection (2)
of section eighteen of this Act ".